ONE POLL, MANY CONCERNS

DESPITE OPPOSITION, THE BJP-LED CENTRE IS DETERMINED TO PURSUE THE 'ONE NATION, ONE POLL' PLAN. IF IT DOES HAPPEN, QUESTIONS WILL BE ASKED ON WHETHER IT STRENGTHENS OR WEAKENS OUR DEMOCRACY

By Kaushik Deka



On September 18, despite opposition from political parties and civil society, the BJP-led NDA government at the Centre decided to move forward with the 'One Nation, One Poll (ONOP)' plan, with the Union Cabinet accepting recommendations from a high-level committee led by former president Ram Nath Kovind. The panel proposed that Lok Sabha and assembly elections be held together, with municipal and panchayat elections following within the next 100 days. It also recommends a single electoral roll and Electoral Photo Identity Card (EPIC) database to govern voting to elections to all three tiers of legislative bodies. But simultaneous elections will require 18 amendments to existing laws, including 15 to the Constitution—e.g. in Article 82 (delimitation), Article 83 (duration of Houses of Parliament), Article 85 (dissolution of Lok Sabha by the President), Article 172 (duration of state legislatures), Article 174 (dissolution of state assemblies), Article 356 (President's Rule in the state) and Article 324 (powers of the Election Commission). The Union government is expected to bring constitutional amendment bills to this effect during the upcoming winter session of Parliament.

The first Constitutional Amendment Bill will seek to insert a new article—82A—to establish the process for the transition to simultaneous polls. Article 82A (1), whereby the President issues a notification of the date of the first sitting of the Lok Sabha, will seek to bring it into force. If it comes to pass, that would henceforth be called the 'Appointed Date'. State assemblies formed after the date and before the completion of the Lok Sabha's term would conclude before the subsequent general election. After this, elections to the Lok Sabha and all state assemblies would be held simultaneously.

The Lok Sabha and state assemblies run for a five-year term and the panel suggests that this should be referred to as 'the full term' by amending Articles 83(2) and 172(1). If the LS or a state assembly is dissolved prematurely, then the remaining period will be referred to as 'the unexpired term'. Subsequently, the new Lok Sabha or assembly will serve only for the unexpired term before being dissolved again to allow simultaneous polls.

The second bill will introduce Article 324A, empowering the Centre to make laws to ensure parallel elections for municipalities and panchayats with the Lok Sabha and assembly elections. The Representation of People Act, 1951, has to be amended to build in provisions for stability of tenure for both Parliament and assemblies.

WILL IT HAPPEN?

Following the introduction of the two amendment bills, Parliament will adhere to the amendment process outlined in Article 368 of the Constitution. Under this, for a constitutional amendment to be approved, it must receive the support of 'not less than two-thirds of the members of that House present and voting'. Since the